

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMARA ZUGUEY MENDOZA AMEZCUA,

Petitioner

VS.

EMMANUEL ROBERTO MENDOZA

GONZALEZ,

Respondent

) Case Number: FDI-22-797316

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ismara Amezcua and Respondent Emmanuel Gonzalez.
- 2) On June 3, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt, alleging non-payment of child support from the Court order filed on April 7, 2025. However, the pleading does not sufficiently identify the specific alleged counts of contempt.
- 3) On June 11, 2026, a “Proof of Unsuccessful Service-Civil” was filed with the Court.
- 4) On June 22, 2026, a valid Proof of Personal Service was filed with the Court indicating the Order to Show Cause and Affidavit for Contempt and all required documentation were personally served on Respondent on June 22, 2026, at 8:58 a.m.

B. Findings and Order

- 1) The Court finds the Order to Show Cause and Affidavit for Contempt filed on June 3, 2026 is procedurally defective as it does not sufficiently identify the specific alleged counts of contempt.

- 1 2) The Court also notes the Department of Child Support Services (DCSS) is a party to this action.
2 The Court does not believe DCSS was served, or Petitioner sought out DCSS's permission to
3 prosecute contempt for non-payment of child support.
- 4 3) As such, the Order to Show Cause and Affidavit for Contempt filed on June 3, 2026, is hereby
5 DISCHARGED.
- 6 4) **No appearances are required on July 16, 2026.**
- 7 5) The Court will prepare the Findings and Order Regarding Contempt (Family Law) (form FL-
8 415).